

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



May 21, 2019

The Honorable Lantz Lewis
Judge of the Superior Court
County of San Diego
P.O. Box 122724
San Diego, CA 92112-2724

Re: Robert Leslie Harbold
CDCR No: T68321
Case No: SCE217220
Date of Sentence: September 25, 2002

Dear Honorable Lantz Lewis:

The purpose of this letter is to provide the court with the authority to resentence inmate Robert Harbold, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Harbold has received three Rules Violation Reports (RVRs) since his arrival to the California Department of Corrections and Rehabilitation (CDCR) on October 15, 2002; however, he has remained disciplinary free since May 2007. Inmate Harbold is currently assigned to the Ironwood State Prison (ISP), Visually Impaired Program as a Braille Transcriber, where he is a Certified Transcriber with the Library of Congress. Harbold also participates in College (correspondence) and Addiction Counseling Program (ACP), where he is a Drug and Alcohol Treatment Specialist.

The Honorable Lantz Lewis
Page 2

Having reviewed the enclosed documentation it appears that inmate Harbold's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment

Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Mr. Michael M. Roddy, County Court Executive Officer
San Diego County District Attorney's Office
San Diego County Public Defender's Office